Guidelines on transparency obligations for providers and deployers of certain AI systems

These guidelines help providers and deployers of AI systems and competent authorities in ensuring compliance with the transparency obligations under Article 50 of the AI Act.

The guidelines clarify these obligations, providing legal certainty about the scope and complementing the Code of Practice on Transparency of AI-generated Content (https://digital-strategy.ec.europa.eu/en/policies/code-practice-ai-generated-content). The guidelines were developed with input provided by Member States, the AI Board and other stakeholders through a public consultation (https://with regard to the obligations for marking and labelling of AI-generated content).

Download the Guidelines on transparency obligations for providers and deployers of AI systems (https://digital-strategy.ec.europa.eu/en/library/guidelines-transparency-obligations-providers-and-deployers-ai-systems)

Transparency obligations for AI providers and deployers

The rapid development of generative and interactive AI systems is making it increasingly difficult to distinguish AI interactions and AI-generated content from human-created and authentic content. Individuals are also increasingly being exposed to emotion recognition and biometric categorisation without their knowledge. This is raising new risks of misinformation and manipulation at scale, fraud, impersonation, and consumer deception.

Article 50 of the AI Act (https://ai-act-service-desk.ec.europa.eu/en/ai-act/article-50) applies from 2 August 2026. It sets out transparency obligations for providers and deployers of certain AI systems, including generative and interactive AI systems and deepfakes.

Providers must:

- Design AI systems in a way that ensures individuals are explicitly informed whenever they interact with an AI system directly
- Add machine-readable marks to enable the detection of AI-generated or manipulated content

Deployers of AI systems must inform individuals when they are exposed to:

- Emotion recognition and biometric categorisation tools

- Deepfakes
- Text publications on matters of public interest without human review or editorial control

These obligations are intended to foster trust and integrity in the information ecosystem. People should know when they are interacting with AI or exposed to AI-generated content. This will help them make informed decisions, calibrate their trust and reliance on AI and avoid mis information or deception.

The National market surveillance authorities (https://digital-strategy.ec.europa.eu/en/policies/market-surveillance-authorities-under-ai-act), the AI Office (https://digital-strategy.ec.europa.eu/en/policies/ai-office) (for systems under its supervision), and the European Data Protection Supervisor (https://www.edps.europa.eu/_en) (when EU institutions are providers/deployers) are responsible for enforcing these rules.

Content of the guidelines

The guidelines clarify the notion of 'providers and deployers of AI systems' setting clear expectations regarding which transparency obligations apply to each stakeholder along the value chain. They provide definitions of certain concepts and outline exemptions and diverse, practical examples of what is in and out of scope. These include definitions of directly interactive AI systems, synthetic content, deepfakes, AI-generated text on matters of public interest and examples of exceptions, such as standard editing.

The guidelines also explain how compliance with the transparency obligations of the AI Act may be demonstrated, including through adherence to the Code of Practice on Transparency of AI-generated Content (https://digital-strategy.ec.europa.eu/en/policies/code-practice-ai-generated-content). Providers and deployers of generative AI systems that decide not to adhere to the code will have to demonstrate compliance with obligations for marking and labelling of AI-generated content through alternative equivalently adequate means. For the other transparency obligations (e.g. regarding AI systems interacting with individuals), providers and deployers can determine adequate measures themselves, while taking into account the guidelines.

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